

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RAJ KUNAR GURUNG,

Petitioner

VS.

LAKSHMI GURUNG,

Respondent

) Case Number: FDI-23-798275

) Hearing Date: May 26, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER SPECIFIC RELIEF: FRINDING THAT JX IS PROPER IN CA AND COURT
PERMITS THE FILING AND ENTRY OF JUDGEMENT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

1) The parties in this matter are Raj Gurung (Husband) and Lakshmi Gurung (Wife). Husband states
the parties married on 5/4/1997 and separated on 3/4/2018, for a marriage of 20 years and 10
months. Wife has filed no pleadings in this matter to date.

2) Case No. FDI-20-793986

a. On 10/9/2020, in related Case No. FDI-20-793986, Husband filed a Petition for
Dissolution.

b. On 11/12/2020, Wife filed a Motion to Quash the proceedings on the grounds that there
was a concurrently pending divorce action in Nepal.

c. Husband did not file a Responsive Declaration to Wife's request to quash the
proceedings.

d. On 2/25/2021, following a hearing, Judge Evangelista granted Wife's motion to quash the
proceedings and dismissed the proceedings.

1 3) Case No. FDI-23-798275

- 2 a. On 6/30/2023, Husband filed a new Petition for Dissolution.
- 3 b. Per the Proof of Service of Summons filed 7/10/2023, the Petition and Summons were
- 4 personally served on Wife on 7/7/2023.
- 5 c. On 10/31/2025, after Wife failed to file a Response to the Petition, Wife's default was
- 6 entered.
- 7 d. On 8/25/2025, Husband submitted a proposed True Default Judgment for the Court's
- 8 review.
- 9 e. On 1/15/2026, the Court rejected Husband's proposed True Default Judgment, stating, "If
- 10 you wish for this Court to enter your proposed dissolution Judgment, you must file and
- 11 serve a Request for Order and show good cause [why] this Court has jurisdiction to enter
- 12 this Judgment despite the finding made in Case No. FDI-20-793986 that Nepal has
- 13 jurisdiction."
- 14 f. On 4/1/2026, Husband filed a Request for Order asking the Court to make a finding that
- 15 California has jurisdiction to make orders in the parties' divorce case and to permit the
- 16 filing and entry of Judgment in this matter. Husband states that the Nepalese case was
- 17 dismissed on 11/4/2020 due to lack of prosecution. Husband attached to his Request for
- 18 Order what he deems a "true and correct copy of the Nepalese Dismissals Verdict with
- 19 English translation, issued November 4, 2020." Husband also notes that both parties have
- 20 lived in California since 2014 and continue to live in California today.
- 21 g. Per the Proof of Service filed 4/6/2026, Husband's Request for Order was mailed to Wife
- 22 on 4/1/2026.
- 23 h. Wife did not file a Responsive Declaration.

24 **B. Findings and Order**

- 25 1) Based on Husband's representation that the prior Nepalese dissolution case has been dismissed,
- 26 the Court finds that Superior Court of California has jurisdiction to make orders in the parties'
- 27 dissolution matter.
- 28 2) Husband may resubmit his proposed Judgment packet for the Court's review.
- 29 3) The Court will prepare the Findings and Order After Hearing.